

3. In the case of a casual vacancy on a pensions appeal tribunal the Lord Chancellor may appoint a similarly qualified person to fill the vacancy.

4. The legal representative shall be the chairman of each tribunal.

5. The number of members of a tribunal to hear any particular case shall be three. Where the claim is that of an officer the second member shall be an officer, and where the claim to be heard is that of a man, the second member shall be a man.

6. There shall be paid to the members of pensions appeal tribunals such remuneration as the Treasury may determine, and any such remuneration and any expenses which may be incurred by a tribunal up to such amount as is sanctioned by the Treasury shall be paid out of moneys provided by Parliament.

7. No court fees shall be charged on the hearing of any case before a pensions appeal tribunal.

8. Subject as aforesaid, the Lord Chancellor may make regulations with respect to the procedure of pensions appeal tribunals, and may by such regulations provide for the transfer to such tribunals of claims pending before a Ministry Appeal Tribunal at the first day of November nineteen hundred and nineteen the summoning of expert and other witnesses, the representation of the claimants and the Ministry at the hearing of any appeal, the arrangements for the sittings of the tribunals (including the sitting of more than one tribunal in the same area) the particular cases which any tribunal shall hear, and such other matters as may be required for the due and speedy determination of appeals.

9. "Lord Chancellor" shall mean, in the application of this schedule to Scotland, the Lord President of the Court of Session, and in its application to Ireland, the Lord Chancellor of Ireland.

CHAPTER 54.

An Act to make further provision for the Protection of Animals from Cruelty. [19th August 1919.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Offences.

1.—(1) If any person shall subject or cause or procure, or being the owner permit to be subjected, an animal to an operation contrary to the regulations contained in this section, he shall be guilty of an offence under this Act.

(2)—(a) A horse, a dog, a cat, or a bovine shall not be subjected to any operation specified in the First, Second, or Third Schedules of this Act, respectively, unless the animal during the whole of the operation is under the influence of some general anæsthetic of sufficient power to prevent the animal feeling pain.

(b) A horse, a dog, a cat, or a bovine shall not be subjected to any operation specified in the Fourth, Fifth, or Sixth Schedules to this Act, respectively, unless during the whole of the operation it is under the influence of some general anæsthetic or some local anæsthetic being, in either case, of sufficient power to prevent it feeling pain.

2. Any person who is guilty of an offence under this Act shall be liable on summary conviction in respect of the first offence to a fine not exceeding five pounds, and in respect of any second or subsequent offence to a fine not exceeding twenty-five pounds, or alternatively, or in addition thereto, to be imprisoned for any term not exceeding three months. Penalties and appeals.

3.—(1) The Board of Agriculture and Fisheries may, by order made subject to the provisions of this section, add any other operation to the operations specified in any schedule to this Act, and any operation so added shall be deemed to be an operation specified in that schedule, and may transfer an operation from one schedule to another, and the Board of Agriculture and Fisheries may also, by order made as aforesaid, extend any provision of this Act to any domestic animal to which it does not at the time apply, with such modifications or additions as may appear to that Board to be necessary. The Board may, by order made subject to the provisions of this section, declare any substance to be a suitable general anæsthetic or a suitable local anæsthetic for the purposes of this Act, and any substance so declared shall be deemed to be a general anæsthetic or local anæsthetic, as the case may be, of sufficient power to prevent the animal feeling pain if properly applied. Powers of Board of Agriculture and Fisheries.

(2) The draft of any such order shall be published for a period of three months before the order is made, and the Board of Agriculture and Fisheries during that period shall receive and consider any representations made to them with respect to the order by any persons appearing to them to be interested in the subject of the order.

(3) The order, when made, shall forthwith be laid before Parliament, and shall not take effect until it has so lain for thirty days before each House of Parliament, being days upon which that House has sat, and if a resolution is passed by either House before the expiration of such days declaring that the order be annulled, the order shall not take effect, but if no such resolution is passed the order shall take effect on such day after the expiration of the last day on which any such resolution might have been passed as the Board of Agriculture and Fisheries may appoint.

4. In this Act, except the context otherwise requires, the expression "horse" includes pony, mule, jennet, or donkey. Definitions.

5. Nothing in this Act shall apply to any experiment to which the Cruelty to Animals Act, 1876, applies. Saving. 39 & 40 Vict. c. 77.

Application to
Scotland and
Ireland.

6. This Act in its application to Scotland and Ireland shall have effect with the substitution of references to the Board of Agriculture for Scotland and the Department of Agriculture and Technical Instruction for Ireland, respectively, for any reference to the Board of Agriculture and Fisheries.

Short title.

7. This Act may be cited as the Animals (Anæsthetics) Act, 1919.

SCHEDULES.

Section 1.

FIRST SCHEDULE.

HORSES.

1. Operation for quitter.
 2. Operation for stripping the wall or sole of the hoof.
 3. Operation for poll evil.
 4. Operation for fistulous withers.
 5. Ovariectomy.
 6. Laparotomy.
 7. Amputations of penis, mamma, uterus.
 8. Extraction of permanent molar teeth.
 9. Operations for scrotal and inguinal hernia.
 10. Operations for scirrhus cord and extensive tumours.
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Section 1.

SECOND SCHEDULE.

DOGS AND CATS.

1. Castration in animals six months old and upwards.
 2. Ovariectomy.
 3. Laparotomy.
 4. Amputations of penis, mamma, uterus.
 5. Operations for scrotal and inguinal hernia.
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THIRD SCHEDULE.

Section 1.

BOVINES.

1. Ovariectomy.
 2. Operations for actinomycosis.
 3. Laparotomy.
 4. Amputation of penis, mamma, uterus.
 5. Dishorning cattle over one month old.
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FOURTH SCHEDULE.

Section 1.

HORSES.

1. Neurectomy or unnerving.
 2. Enucleation of the eyeball.
 3. Line and point firing.
 4. Operation for umbilical hernia.
 5. Urethrotomy.
 6. Docking of the tail.
 7. Trephining.
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FIFTH SCHEDULE.

Section 1.

DOGS AND CATS.

1. Enucleation of the eyeball.
 2. Operation for umbilical hernia.
 3. Urethrotomy.
 4. Docking of the tail and clipping or rounding of ears of animals over six months old.
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SIXTH SCHEDULE.

Section 1.

BOVINES.

1. Enucleation of the eyeball.
 2. Operation for umbilical hernia.
 3. Rumenotomy.
 4. Urethrotomy.
 5. Trephining.
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